

TENTATIVE RULING(S) FOR April 28, 2026

Department S14 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2525206

Straoud et al vs Rose Garden et al

TENTATIVE RULING(S):

Before the Court is Plaintiff Successor-in-Interest Stroud's motion to compel responses from Defendant Rose Garden Residential Operator (Rose Garden) to: (1) Special Interrogatories, Set One, (2) Form Interrogatories, Set One, and (3) Requests for Production, Set One. Defendant opposes. Plaintiff filed an objection to Defendant's opposition, asserting it was electronically served on April 15, 2026, less than nine days plus two court days for electronic service, before the hearing.

Summary of Parties' Arguments

Plaintiff served the discovery at issue on August 1, 2025. On September 2, 2025, defense counsel requested a 30-day extension to October 6, 2025, which Plaintiff's counsel granted. On

October 2, 2025, defense counsel requested a two-week extension to October 20. Plaintiff's counsel agreed, stating Plaintiff would grant one additional extension. (Saltzman Decl. ¶¶ 10-13.) On October 20, 2025, Plaintiff's counsel received a telephone call from defense counsel Jessica Munoz about discovery issues she was having in obtaining responsive documents. Because the parties were attempting to resolve the matter by settlement, Plaintiff's counsel agreed to stay discovery for one month to November 20, 2025, so defense counsel could prepare an evaluation report to her client and carrier to obtain settlement authority. The parties agreed they would revisit the discovery stay closer to November 20 to determine if it would remain in effect. Plaintiff's counsel states she agreed to the discovery stay because defense counsel specifically represented that she would make a good faith effort to attempt to resolve the matter informally. (Saltzman Decl. ¶¶ 14-15.)

Thereafter on November 12, Plaintiff's counsel attempted to obtain an update regarding settlement and defense counsel failed to respond. On November 19, 2025, having heard nothing, Plaintiff's counsel emailed defense counsel that because defense counsel failed to adhere to the parties' agreement related to the discovery stay, responses were due on November 26, 2025. Defense counsel did not respond or provide responses on November 26, 2025. On December 1, 2025, Plaintiff's counsel again emailed defense counsel regarding discovery responses and stated that objections were waived. (Saltzman Decl. ¶¶ 16-20.)

On December 2, 2025, defense counsel responded and apologized for not responding earlier. She stated she was preparing for a month-long trial that was to start on January 5, 2026, and had been unable to generate the report to obtain settlement authority. Defense counsel also stated that she believed she could obtain settlement authority if given extra time and if Plaintiff's counsel was willing to reset dates. (Saltzman Decl. ¶¶ 21-22.)

Plaintiff's counsel responded that as of December 2, Defendant had 122 days to prepare responses. Plaintiff's counsel then offered one final extension to December 16, 2025, for Defendant to serve its verified responses and documents, provided the responses were without objections. On December 5, 2025, Plaintiff's counsel sent a follow-up email about the December 2 offer, because no response to her email was received. On December 5, 2025, defense counsel

responded that she agreed to the proposed discovery extension and confirmed that Defendant had until December 16, 2025 to serve verified responses and documents without objections. (Saltzman Decl. ¶¶ 23-26 and Exhs. L-M.)

On December 18, 2025, Plaintiff filed her motions to compel responses to the discovery at issue, because no responses were served. (Saltzman Decl. ¶ 27.)

On April 2, 2026, Plaintiff filed an additional supplemental points and authorities in support of the motion and a supplemental declaration. Plaintiff states that on December 19, 2025, Rose Garden served Plaintiff with responses to Form Interrogatories and RFPs. The responses included objections and incomplete responses. Responses to the Special Interrogatories were not served and as of April 2, 2026, still had not been served.

On January 13, 2026, Plaintiff sent a meet and confer letter addressing the deficient and untimely responses served on December 19, 2025. On January 31, 2026, defense counsel sent an email that did not agree to provide further responses. Defense counsel also stated that Defendant was going to move for relief from the waiver of objections; Plaintiff states no such motions were filed. Defense counsel also agreed to serve a supplemental response to Form Interrogatory 15.1, but as of April 2, 2026, a supplemental response has not been served. (Allen Supp. Decl. ¶¶ 4-6.)

In opposition filed on April 15, 2026, Defendant Rose Garden states that Defendant served verified responses to the Form interrogatories and RFPs on December 19, 2025. In addition, verified responses to the Special Interrogatories were served on April 14, 2026. Therefore, Defendant contends the motions are moot.

With respect to Plaintiff's arguments in the supplemental filings, Defendant asserts that the problem with Plaintiff's arguments is that Plaintiff did not file motions to compel further responses, therefore, the responses must have been satisfactory. Defendant also asserts that a party cannot simply convert a motion to compel responses to a motion to compel further responses by submitting a declaration and supplemental points and authorities. It asserts no separate statement was filed and Plaintiff did not timely file separate motions to compel further responses with respect to the Form Interrogatories and RFPs. Therefore, Defendant contends,

the Court has no further jurisdiction to compel further responses to the Form Interrogatories or RFPs.

Defendant also contends that should Plaintiff seek responses without objections, such issue is to be determined at Defendant's motion to be relieved from objections, which Defendant contends is set for hearing on August 18, 2026, although no such motion is demonstrated as being set. Finally, Defendant asserts sanctions should not be ordered, because it was a difficult time for defense counsel because while the parties were meeting and conferring over discovery extensions, defense counsel was preparing for a one-month elder abuse trial that was to begin in January 2026. Given there were 15 expert witnesses, defense counsel states she could not adequately manage the discovery responses or give Saltzman the courtesy of responses for emails, for which defense counsel apologizes. (Munoz Decl. ¶ 3.)

Analysis

Defendant's argument that the Court has no jurisdiction to consider Defendant's responses served after the motions to compel were filed is without merit. In *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390 (*Sinaiko*), the Court noted that "[i]f a party fails to serve a timely response to interrogatories, then by operation of law, all objections that it could assert to those interrogatories are waived. [(Citation.)] Unless that party obtains relief from its waiver, the propounding party is entitled to move ... for an order compelling the response to which the propounding party is entitled—that is, a response without objection, and that substantially complies with the provision governing the form (§ 2030.210) and completeness (§ 2030.220) of interrogatory responses." (*Id.* at p. 408.) The same results apply to RFPs under section 2031.300.

The *Sinaiko* Court also discussed the trial court's authority in a situation in which a motion to compel responses is brought and untimely responses are served after the motion is filed.

"Whether a particular response does resolve satisfactorily the issues raised by a motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case. ... If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion. The trial court might compel responses

without objection if it finds no legally valid responses have been provided to one or more interrogatories; it might deny the motion to compel responses as essentially unnecessary, in whole or in part, and just impose sanctions; it might treat the motion as one under section 2030.300 [or section 2031.310] and either determine that further answers are required, or order the propounding party to 'meet and confer' ... and file a separate statement (Cal. Rules of Court, rule 3.1020(a)(2), (c)); or it might take the motion off calendar, thereby requiring the propounding party to file a motion under section 2030.300 [or section 2031.310]." (*Id.* at p. 408.)

The reasoning behind the Court's conclusion with respect to the trial court's discretion was that it would be unfair for a responding party to wait until the hearing on a section 2030.290 (or section 2031.300) motion was imminent and then serve a set of evasive incomplete responses that thereby unilaterally deprive the court of authority to hear the motion. (*Ibid.*)

As the *Sinaiko* case demonstrates, the Court has many options when, as here, it is faced with untimely responses. At this time, to the extent objections were asserted, they are untimely and waived. In addition, given the number of discovery requests at issue, and that Plaintiff has sent a meet and confer regarding the RFP responses and form interrogatory responses, the Court is continuing the hearing of Plaintiff's motions for the parties to meet and confer over the responses provided, including special interrogatories, and for the motions to be treated as motions to compel further responses under sections 2030.300 and 2031.310. With the continued hearing, Plaintiff should file separate statements, supplemental arguments, and notice any additional sanctions sought related to compelling further responses, Defendant may file supplemental oppositions, and Plaintiff may file supplemental replies according to code.

Sanctions

With respect to compelling responses, Plaintiff seeks sanctions as follows against Defendant Rose Garden and its attorneys of record, Kelly Trotter & Franzen:

- Special Interrogatories: \$3,245 comprised of 1 hour research, 2.8 hours drafting attorney Allen's contribution to the motion, 0.6 hours to review the first draft, 0.5 hours to draft the declaration, for a total of 4.9 hours at \$650/hour, plus \$60 filing fee. (Allen Decl. ¶¶ 10-13.)

- Form Interrogatory Motion: \$840, which is comprised of 0.9 hours to draft the motion, 0.3 hours to review the first draft, for a total of 1.2 hours at \$650/hour, plus \$60 filing fee. (Allend Decl. ¶¶ 14-17.)
- RFP Motion: \$7,800 comprised of 6.0 hours preparing the motion, 3 hours to draft the Saltman Declaration, 1 hour to review and research Rose Garden's opposition, 1.5 hours to prepare the reply, and 0.5 hours to appear at the hearing, for a total of 12 hours at \$650/hour, plus \$60 filing fee.

Sanctions are warranted given it appears that it was the filing of these motions that caused Defendant to serve responses, the Court awards the amounts sought for the special and form interrogatories motions. As for the RFP motion, 12 total hours is not demonstrated to be reasonable given what is at issue and counsel charges \$650/hour. The amount related to preparing the motion is reduced to 3 hours. In addition, no reply was filed, so 1.5 hours for its preparation is not demonstrated to be reasonable. Therefore, the Court awards a total of 7.5 hours, or \$4,875, plus the \$60 filing fee for a total of \$4,935 for the RFP motion.

RULING

For the reasons stated above, the Court CONTINUES the motion to compel responses to be considered as a motion to compel further responses under Code of Civil Procedure sections 2030.300 and 2031.310. The hearing date for the continued hearing is May 22, 2026, at 8:30 a.m., in Dept. S14. At this time, to the extent objections were asserted in responses, they are untimely and waived.

The Court Orders the parties to meet and confer in person, by telephone, or videoconference over responses at issue. With the continued hearing, Plaintiff should file separate statements, supplemental arguments, and may notice any additional sanctions sought related to compelling further responses, Defendant may file supplemental oppositions, and Plaintiff may file supplemental replies according to code. To the extent a hearing is no longer necessary, Plaintiff's counsel shall immediately notify the court clerk and file a Notice of Withdrawal.

As for sanctions related to the motions to compel responses, the Court awards the following amounts in sanctions against Defendant Rose Garden and its counsel of record Kelly Trotter & Franzen, joint & several:

- Special Interrogatory Motion - \$3,245;
- Form Interrogatory Motion - \$840; and
- Request for Production Motion -- \$4,875.

All monetary sanctions shall be due on or before May 6, 2026.